

		proceed with respect to this order to show cause, including whether the court should vacate the order to show cause in light of the family law court ruling.
3.	<i>City of Buena Park vs. Forsyth</i> 2026-01546372	Before the court is the continued hearing on the petition for appointment of receiver filed by petitioner City of Buena Park (Petitioner) regarding the real property located at 5832 Darlington Avenue, Buena Park, California 90621 (Property). As more fully set forth below, the motion is GRANTED. (Health & Saf. Code, § 17980.7(c).) Petitioner has demonstrated there are significant and ongoing housing and building code violations at the Property, which pose a serious risk to the health and safety of any occupants and the public. (See Zapien Decl., ¶¶ 10-14, 21-23 and Exhs. A-F.) Petitioner also has demonstrated the owner of the Property, respondent Richard L. Forsyth (Respondent), has been afforded a reasonable opportunity to correct the conditions at the Property but has failed to do so. Petitioner issued multiple citations and letters to Respondent between 2018 and 2025 regarding the dangerous conditions at the Property. (See Zapien Decl., ¶¶ 8-21.) Despite the passage of seven years, Respondent has failed to cure the violations at the Property. The court finds Petitioner's nominated receiver, Amanda R. Wheeland, has the demonstrated capacity and expertise to develop and supervise a viable financial and construction plan for the satisfactory rehabilitation of the Property. (Health & Saf. Code, § 17980.7(c)(2)). Notice of this petition was duly given to Respondent, but no response from Respondent has been filed. The court received an opposition to the petition from respondent Bank of America, N.A., as Successor in Interest to Countrywide Bank, FSB (Bank of America). Bank of America does not dispute the Property is in substandard condition and endangers the health and safety of its occupants and the surrounding residents. It appears Bank of America objects to the court issuing an order that the receiver's lien would take priority over Fannie Mae's lien on the Property, claiming federal law would preempt and prevent the granting of such a super-priority lien. Bank of America has offered no authority specifically addressing receiverships for substandard buildings or holding a trial court is barred from appointing receivers pursuant to California Health and Safety Code section 17980.7 to abate a substandard building where a federally backed loan encumbers the property. Similarly, although it is clear the

		court has the authority under California law to authorize a super-priority lien (see, e.g., <i>County of Sonoma v. Quail</i> (2020) 56 Cal.App.5th 657, 664), Petitioner has not cited any authority requiring the court to grant super-priority status to any lien the receiver obtains. Given Petitioner has shown a receiver for the Property is warranted and Bank of America has offered no authority specifically establishing the court is unable to appoint a receiver in this instance, the court will GRANT the petition to appoint a receiver. The court hereby appoints Amanda R. Wheeland to act as receiver over the Property. Ms. Wheeland is authorized to exercise the powers and duties enumerated in Health and Safety Code section 17980.7, subdivision (c)(4). The court, however, declines to issue an order pertaining to the priority of liens at this time. Given Petitioner's representation in the reply that the issue of priority can likely be resolved by the parties, the parties are ORDERED to meet and confer on the issue of priority. Petitioner is cautioned the receiver ultimately may not be granted a super-priority lien if the parties are unable to reach an agreement. Similarly, Bank of America is cautioned the receiver may later be granted super-priority status if the parties are unable to reach an agreement. The court reserves the ability to determine the priority of any certificate on a future motion. The court will set a status conference at which time the parties shall inform the court of the progress of their discussions. At the status conference, the court also will expect an update regarding the status of the Property. The receiver is ordered to file and serve a status report at least 10 days before the status conference. The status conference is scheduled for <u>Monday, October 12, 2026, at 9:30 a.m., in Department C23.</u> Counsel for Petitioner is to submit a proposed order in accordance with this ruling. Counsel for Petitioner is ordered to give notice.
4.	<i>Knypstra vs. Sheldon</i> 2026-01552256	CONTINUED TO OCTOBER 29, 2026, as stated in ex parte application and order signed by the court on August 2, 2026
5.	<i>Reed's Inc. vs. California</i>	Before the court is the petition of petitioner Reed's, Inc. (Petitioner) to confirm arbitration award. Respondent California Custom Beverage, LLC (Respondent) filed an opposition to the petition in which Respondent asks the